

Court No. - 32

Case :- WRIT - C No. - 40058 of 2015

Petitioner :- Ishwar Chandra

Respondent :- U.P. Power Corporation Limited Thru' Its M.D. & Another

Counsel for Petitioner :- Bimal Prasad, Vijay Prakash Pandey

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Rakesh Tiwari, J.

Hon'ble Mukhtar Ahmad, J.

Heard learned counsel for the petitioner and the learned Standing counsel for the respondents.

As prayed by the learned counsel for the respondents three weeks' time is allowed for filing counter affidavit. List thereafter.

In the mean time, the operation of the demand notice/bill dated 11.6.2015 shall remain stayed.

Order Date :- 22.7.2015

CPP/-

Court No. - 21

Case :- WRIT - C No. - 40058 of 2015

Petitioner :- Ishwar Chandra

Respondent :- U.P. Power Corporation Limited Thru' Its M.D. & Another

Counsel for Petitioner :- Bimal Prasad, Vijay Prakash Pandey

Counsel for Respondent :- Mahboob Ahmad, S.C.

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

Ishwar Chandra is before this Court for a direction to quash the final assessment bill dated 23.05.2015 issued by respondent no.2 by which he has confirmed the provisional assessment bill dated 1.1.2015; to quash the demand bill dated 11.6.2015 by which the load of the premises of the petitioner has been enhanced from 2 KW to 8 KW and accordingly the bill has been issued to the petitioner and for a further direction to respondent no.2 to decide the objection of the petitioner dated 27.1.2015 within a time bound manner and till the decision no coercive action against the petitioner may be taken.

The record in question reflects that the petitioner has taken a connection from the electricity department being Connection No.KB2/1302/082835. Initially the said connection was of 1 KW and later on the load was enhanced to 2 KW. It is also contended that earlier the said connection was domestic, however, later on it was converted as commercial. It is submitted that the petitioner was regularly paying the electricity bill. The petitioner in front of the premise has opened a shop of readymade garments.

On 7.7.2014, a vigilance team of the respondent no.2 raided the premises of the petitioner and enhanced the load from 2 KW to 8 KW. Thereafter, the respondent no.2 issued a provisional bill dated 1.1.2015 and by the said bill, the petitioner was directed to submit his objection till 2.2.2015. Pursuant thereto the petitioner filed his objection on 27.1.2015. It is submitted that till date the objection of the petitioner has yet not been decided by respondent no.2, however, the respondent no.2 without deciding the objection of the petitioner sent the final assessment bill dated 23.5.2015. On the basis of said final assessment bill, the respondent no.2 has sent the demand bill dated 11.6.2015.

The petitioner has contended that demand bill dated 11.6.2015 and final assessment bill dated 23.5.2015 have been issued without there being any cogent material and the same are liable to be quashed. Learned counsel for the petitioner has vehemently contended that in response to the provisional bill,

the petitioner had proceeded to file detailed objection and without finalisation of final assessment bill after considering the petitioner's objection the present demand bill dated 11.6.2015 has been issued, which is contrary to the provisions of the Electricity Act, 2003 read with provisions of U.P. Electricity Supply Code, 2005. Learned counsel for the petitioner further submits that the order impugned cannot sustain on the ground that in view of the provisions of Electricity Supply Code, 2005, only after considering the objection of the petitioner, the final assessment order can be made in the matter.

On the other hand, learned counsel for the respondents has vehemently opposed the writ petition. It is submitted that authority on spot after inspection has found that the load of the connection was not sufficient and therefore the load was enhanced and provisional assessment was made and the petitioner was asked to file reply. However, the petitioner has not proceeded to file his objection and as such the present impugned orders have been passed. It is further submitted that the impugned orders have been passed strictly in accordance with law and if the petitioner is aggrieved against the impugned orders, he may file appeal provided under Section 127 of the Electricity Act, 2003 but in any case present writ petition is not maintainable and this Court should not come to rescue and relieve of the petitioner.

In this background, we have proceeded to examine the record in question. The petitioner has contended that he has filed objection to the provisional assessment but without considering the same, final assessment has been made, while on the other hand the respondents are refuting the same and stated that the petitioner has not filed any objection, once such is the factual dispute, the same cannot be adjudicated by us under Art.226 of the Constitution of India. The U.P. Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained Act and against the impugned orders the remedy of appeal is provided under Section 127 of the Electricity Act, 2003. Whatever the contention as has been raised in the writ petition can be raised in appeal but in any case, as alternative remedy is available, we are not inclined to interfere in the matter. We also make it clear that passing of this order will not at all come in the way of the petitioner to pursue the remedy as is available to him under the Electricity Act, 2003 read with provisions of U.P. Electricity Code, 2005.

With these observations, the writ petition stands **disposed of**.

Order Date :- 1.8.2016
SP/